Farnsworth GROUP

5613 DTC Parkway, Suite 1100
Greenwood Village, CO 80111
[redacted]
www.f-w.com

SURVEY PROFESSIONAL SERVICES AGREEMENT
For GIS & Surveying Services Only
(Farnsworth Group General Conditions Attached)

This **SURVEY PROFESSIONAL SERVICES AGREEMENT** (this "***Agreement***") is made as of this day of , 2025 (the "***Effective Date***") between **THE TOWN OF NEDERLAND, COLORADO**, ("***Client***") and **FARNSWORTH GROUP, INC.** ("***Farnsworth Group***"). Each of Farnsworth Group and Client is referred to herein as a "***Party***," and collectively as the "***Parties.***"

1. Services. Farnsworth Group will perform the work and services (the "***Services***"), as set forth in the scope of work entered into by the Parties ("***SOW***"), attached hereto as **Exhibit A**. Unless expressly set forth otherwise in the applicable SOW, Farnsworth Group will provide all supervision, labor, materials, tools, equipment, and subcontracted work that are necessary for the performance and completion of the Services. Unless and until this Agreement and/or a SOW is fully executed by both Parties, Farnsworth Group shall have no obligation to provide Services.

2. Term. This Agreement commences on the Effective Date, and unless sooner terminated in accordance with this Agreement, will continue until the Services are completed.

3. Pricing and Payment. Client shall pay Farnsworth Group the fees set forth in the SOW (the "***Fees***"). The rates used in estimating the fixed fees for the SOW will be the rates set forth in the then-current rate schedule attached hereto as part of **Exhibit B** ("Schedule of Charges"), which Schedule of Charges may be unilaterally amended by Farnsworth Group no more frequently than once per year, beginning on the first day of the calendar year commencing after the date of this Agreement. All other invoicing and payment terms are addressed in the General Conditions, attached hereto as **Exhibit C**.

4. Notices. See General Conditions, attached hereto as **Exhibit C**

5. Governing Terms. The terms and conditions of this Agreement apply to the SOW issued pursuant to this Agreement. All purchases of Services are expressly limited to and conditioned upon acceptance of this Agreement. Any additional or conflicting terms or conditions contained in any purchase order, statement of work, or other document issued by Client will not be binding upon Farnsworth Group and are expressly rejected by Farnsworth Group.

6. Facsimile; PDF Signatures. Execution and delivery of this Agreement and the SOW by delivery of a facsimile or portable document format ("PDF") copy bearing the facsimile or PDF signature of any party hereto shall constitute a valid and binding execution and delivery of this Agreement or SOW by such party. Such facsimile and PDF copies shall constitute enforceable original documents.

7. General Conditions. The General Conditions attached hereto as Exhibit C are incorporated into and made a part of this Agreement.

8. Exhibits. The following Exhibits are attached to this Agreement:
Exhibit A: Scope of Work
Exhibit B: Fee Estimate and Schedule of Charges
Exhibit C: General Conditions

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

FARNSWORTH GROUP, INC.

Signature: _____

Name: Fredrick L. Easton, Jr.

Title: Sr. Land Surveying Manager

Date: 8/28/2025

TOWN OF NEDERLAND, COLORADO

Signature: Jonathan Cain Digitally signed by Jonathan Cain DN: cn=Jonathan Cain, c=US, o=Town of Nederland, ou=Administration, email=townadmin@nederlandco.org Reason: I am approving this document Date: 2025.09.04 11:08:15 -06'00'

Name: _____

Title: _____

Date: _____

SURVEY - PROFESSIONAL SERVICES AGREEMENT – SIGNATURE PAGE

EXHIBIT A

SCOPE OF WORK

This **SCOPE OF WORK** (this "***SOW***") entered into pursuant to, and shall be subject to, the terms and conditions of that certain Survey Professional Services Agreement dated as of day of , 2025 (the "***Agreement***") between Client and Farnsworth Group. Capitalized terms used and not defined in this SOW will have the meanings ascribed to them in the Agreement.

PROJECT SCOPE:

Farnsworth Group will provide the following Services in support of the Town of Nederland's (Client) acquisition of the Eldora Mountain Resort. These services will be performed, unless otherwise noted below, on the properties listed in Chicago Title Insurance Company Title Commitment File / Order Number CCHI2404903NT dated October 28, 2024 (Title Commitment) only on Parcels Five and Twelve of Exhibit A in said Title Commitment. This basically includes the following properties in the title commitment:

- Boulder County:
  - 158329000001
  - 158300301001

FG will review all documents provided by client and their representatives and obtain additional documents publicly as necessary to be able to depict the parcels FIVE and TWELVE in the Title Commitment on top of the DRCOG 2024 Dever Regional Aerial Photography Project 12" resolution summer ortho-imagery, which covers this site. This is likely to include various GIS layers from Federal, State, DRCOG, and County sources as well as Bureau of Land Management / General Land Office original Survey Plats and Notes, Patents, Mineral Surveys, and other data.

All the above will be used to compile an exhibit map showing the subject property with the DRCOG imagery as a background in as accurate a position possible without benefit of field survey or locations to serve as a initial point of review prior to mobilization of field crew(s). A brief surveyor's report will be provided noting any discrepancies between adjoining boundaries, closure of legal descriptions, ambiguities, or any other problems encountered in the compilation of these parcels.

FG will establish an RTK GPS control network based on NGS control, Boulder County control, and/or OPUS adjustment as appropriate to the site survey and based on radio / cellular connectivity determined at time of survey to perform field locations across the subject properties.

FG will then obtain GIS Land Positions at, or near, controlling corner positions determined during the previous phase for the subject property. If the entire subject property listed in the title commitment is desired to be included in this phase, the following maximum quantities are the basis for the attached fee estimate:

- Positions near PLSS corners with modern survey records 6
- Positions near PLSS corners with no survey records.....0
- Positions near Mineral Survey corners 1
- Positions near property or subdivision corners.....42

The Boundaries of parcels compiled in the previous phase will then be shifted to the located positions.

Those exceptions to title as noted in schedule B-2 which directly affect just Parcels FIVE and TWELVE can be depicted graphically, will be added to the exhibit map.

The exhibit map and surveyor's report will be updated based on the refined lines. This will include a listing of the B-2 Schedule and the surveyor's comments on these exceptions, such as if each item is depicted, can't be drawn, does not affect the subject property, etc.

Client will be provided with a preliminary PDF exhibit map as well as a CAD file of the property boundaries and the depicted easements affecting parcels FIVE and TWELVE.

FG will use the above information to prepare a Land Survey Plat (LSP) of the boundary in compliance with Colorado Revised Statutes, including:

- Show all found controlling corner information and file monument records with the State of Colorado as required by law
- Set any public land survey system corner that controls the boundary that was not found following the BLM 2005 Manual of Surveying Instructions requirements for such re-establishment
- Set property corners comprised of 18" long #5 rebar and cap at each of the site boundary corners that does not currently have a corner
- Survey pertinent Boundary Evidence which may demonstrate bona fide rights of occupation
- Prepare a PDF of the LSP signed by a CO Licensed Professional Land Surveyor
- Deposit LSP with Boulder and Gilpin County Clerk and Recorder's Office
- If necessary, controlling monument records previously filed with be updated based on current references or newly set references to perpetuate the corner(s) per CO Revised Statutes
- Due to lack of documented evidence of boundary of the excepted "Cabin Parcel" as noted on previous surveys and the vague property description, this phase will also include obtained testimony from land owners (parole evidence) on both sides of this parcel's boundary to determine any evidence of the likely location of this 50'x100' parcel; however, this parole evidence will likely be given the least amount of weight in determining the location of this boundary if any other evidence is found

DELIVERABLES:

Client will be provided a signed PDF of the final Land Survey Plat (LSP) as well as digital CAD file used to create the LSP.

SCHEDULE & MILESTONES:

It is estimated that the survey can be completed within 8 weeks of from notice to proceed, subject to weather delays, other acts of god, and the assumptions and qualifications set forth herein, if any.

FEES:

Please select one of the following:

The above-described work will be performed for a fixed fee of **$65,300.00** including all direct expenses.

Accepted and Agreed to by:

Client (Initial Here) : _____ Date: _____

Farnsworth Group (Initial Here) : _____ Date: 8/28/2025

EXHIBIT B

Schedule of Charges - January 1, 2025

Engineering/Surveying/Commissioning Professional Staff Per Hour

Administrative Support/Project Controls	$ 105.00
Environmental Scientist I	$ 115.00
Environmental Scientist II	$ 125.00
Engineering Associate I/Cx Specialist I/Project Associate I/Env. Scientist III	$ 145.00
Engineering Associate II/Cx Specialist II/Process Associate II/Env. Scientist IV	$ 160.00
Engineer/Land Surveyor/Sr. Cx Specialist/Sr. Env. Scientist I	$ 175.00
Sr. Engineer/Senior Land Surveyor/Cx Project Manager/Sr. Env. Scientist II	$ 185.00
Project Engineer/Project Land Surveyor/Sr. Cx Project Manager/Process Engineer/Sr. Env. Scientist III	$ 195.00
Process Engineer/Sr. Environmental Scientist IV	$ 205.00
Sr. Project Engineer/Sr. Project Land Surveyor/Cx Manager/Process Project Engineer/Env. Mgr. I	$ 215.00
Sr. Process Project Engineer/Environmental Manager II	$ 230.00
Engineering Manager/Land Surveying Manager/Sr. Cx Manager/Sr. Env. Manager I	$ 240.00
Sr. Land Surveying Manager/Sr. Cx Director/Process Engineering Manager/Sr. Env. Manager II	$ 265.00
Sr. (Process) Engineering Manager	$ 275.00
Associate Principal	$ 280.00
Principal	$ 295.00
Process Principal	$ 305.00
Managing Principal/Vice President	$ 310.00
Managing Process Principal	$ 335.00

Technical Staff

Technician I/Environmental Specialist I	$ 110.00
Technician II/Environmental Specialist II	$ 130.00
Sr. Technician/Cx Technician/Environmental Specialist III	$ 140.00
Chief Technician/Environmental Specialist IV	$ 165.00
Designer/Computer Specialist/Lead Technician/Process Designer I/Technical Specialist I	$ 175.00
Sr. Designer/Process Designer II/Technical Specialist II	$ 180.00
Project Designer/Project Technician/Process Designer III/Technical Specialist III	$ 195.00
Sr. Project Designer I/Systems Integration Mgr./Sr. Process Designer I/Sr. Project Tech/Sr. Tech Specialist I	$ 215.00
Design Manager/Grants Manager/Program Manager/IT Manager	$ 220.00
Sr. Project Designer II / Technical Manager/Program Director/Sr. Technical Specialist II	$ 235.00
Sr. Process Designer II	$ 245.00
Sr. Process Designer III/Process Design Manager	$ 250.00
Sr. Technical Manager/Sr. Program Director/Sr. Technical Specialist III	$ 255.00
Sr. Process Design Manager	$ 265.00

Units

Expert Testimony	2xbilling rate
Software/CAD/Revit Station	$20.00/hr
ATV & Trailer	$30.00/hr
Field Vehicle	$30.00/hr
Automobile mileage	IRS Rate
Hand Held GPS	$20.00/hr
GPS Unit (each)	$30.00/hr
Environmental GPS Data Collector	$85.00/day
Utility Locator/Robotic Total Station	$35.00/hr
Stationary Scanner (low res) | High-Def Scanner/UAV	$330.00/day / $550.00/day
Subconsultants & Other Reimbursable Expenses Related to Project*	Cost+ 12%

*Also includes the actual cost of items not mentioned above: prints/copies, supplies, travel, mileage, testing services, conferencing services, and other costs directly incidental to the performance of the above services.

CHARGES EFFECTIVE UNTIL JANUARY 1, 2026 UNLESS OTHERWISE NOTIFIED
1.5% per month will be added to any outstanding balance that is past 30 days from date of invoice.

Farnsworth GROUP

EXHIBIT C

GENERAL CONDITIONS

Date: August 28, 2025

Client: TOWN OF NEDERLAND, COLORADO

Project: ELDORA MOUNTAIN RESORT

Standard of Care: Services performed by Farnsworth Group under the Agreement will be conducted in a manner consistent with that level of care and skill ordinarily exercised by members of the profession currently practicing under similar conditions. No other representation expressed or implied, and no warranty or guarantee, is included or intended in the Agreement, or in any report, opinion, document, or otherwise.

Entire Agreement: These General Conditions and the signed document to which they are attached constitute the entire Agreement between Client and Farnsworth Group and are referred to hereinafter collectively as the "Agreement". The Agreement supersedes all prior communications, understandings and agreements, whether written or oral. Both parties have participated fully in the preparation and revision of the Agreement, and each party and its counsel have reviewed the final document. Any rule of contract construction regarding ambiguities being construed against the drafting party shall not apply in the interpreting of the Agreement, including any Section Headings or Captions.

Precedence: All purchases of Services are expressly limited to and conditioned upon acceptance of this Agreement. The Agreement shall take precedence over any inconsistent or contradictory provisions contained in any proposal, contract, purchase order, requisition, notice to proceed, or like document regarding Farnsworth Group's services. Any additional or conflicting terms or conditions contained in any purchase order, statement of work, or other document issued by Client will not be binding upon Farnsworth Group and are expressly rejected by Farnsworth Group.

Fee Schedule: Where lump sum fees have been agreed to between the parties, they shall be so designated in the signed document attached hereto and by reference made a part hereof. Where fees are based upon hourly charges for services and costs incurred by Farnsworth Group, they shall be based upon the hourly fee schedule annually adopted by Farnsworth Group, as more fully set forth in a Schedule of Charges attached hereto and by reference made a part hereof. Farnsworth Group. Such fees in the initial year of the Agreement shall be those represented by said Schedule of Charges, and these fees will annually change at the beginning of each calendar year after the date of the Agreement.

Opinions of Cost: Farnsworth Group's opinions of probable Project cost or construction cost for the Project will be based solely upon its own experience with construction. Since Farnsworth Group has no control over the cost of labor, materials or equipment, or over a contractor's method of determining prices, or over competitive bidding or market conditions, Farnsworth Group cannot and does not guarantee that proposals, bids, or the construction cost will not vary from its opinions of probable cost. If Client wishes greater assurance as to the construction cost, Client should employ an independent cost estimator.

Invoices: Client will pay Farnsworth Group the fees set forth in the Agreement (the "Fees"). Charges for services will be billed at least as frequently as monthly, and at the completion of Project. Client shall compensate Farnsworth Group for any sales or value added taxes which apply to the services rendered under the Agreement or any amendment thereto. Client shall reimburse Farnsworth Group for the amount of such taxes in addition to the compensation due for services. Payment of invoices shall not be subject to any discounts or set-offs by Client unless agreed to in writing by Farnsworth Group. Invoices are delinquent if payment has not been received within thirty (30) days from date of invoice. Amounts outstanding more than thirty (30) days will accrue interest at the rate of 1.5% per month (compounded), or if lower, the maximum rate permitted by applicable law. Should a past due amount exceed sixty (60) days, Farnsworth Group shall have the right to suspend all Services, without liability of any kind to Client, until full payment is received. All time spent and expenses incurred (including attorney's fees) in connection with collection of any delinquent amount will be paid by Client to Farnsworth Group per Farnsworth Group's then current Schedule of Charges. Client will reimburse Farnsworth Group at the rate of cost plus 10% for reasonable meals and travel expenses incurred in connection with travel requested by Client outside the metropolitan area in which the individual employee or contractor of Farnsworth Group normally works.

Confidentiality: Each party shall retain as confidential all information and data furnished to it by the other party which are designated in writing by such other party as confidential at the time of transmission and are obtained or acquired by the receiving party in connection with the Agreement, and said party shall not reveal such information to any third party. However, nothing herein is meant to preclude either disclosing and/or otherwise using information (i) when the information is actually known to the receiving party before being obtained or derived from the transmitting party; or (ii) when the information is generally available to the public without the receiving party's fault at any time before or after it is acquired from the transmitting party; or (iii) where the information is obtained or acquired in good faith at any time by the receiving party from a third party who has the same in good faith and who is not under any obligation to the transmitting party in respect thereof; or (iv) is required by law or court order to be disclosed.

Compliance with Law: In the performance of services to be provided hereunder, Farnsworth Group and Client agree to comply with applicable federal, state, and local laws and ordinances and applicable lawful governmental or quasi-governmental order, rules, and regulations.

Modification to the Agreement: Client or Farnsworth Group may, from time to time, request modifications or changes in the scope of services to be performed hereunder. Such changes, including any increase or decrease in the amount of Farnsworth Group's compensation, to which Client and Farnsworth Group mutually agree shall be incorporated in the Agreement by a written amendment to the Agreement.

Notice: All notices required or permitted under this Agreement must be written and will be deemed given and received (a) if by personal delivery, on the date of such delivery, (b) if by electronic mail, on the transmission date if sent before 4:00 pm U.S. central time on a business day or, in any other case, on the next business day, (c) if by nationally recognized overnight courier, on the next business day following deposit for next business day delivery, or (d) if by certified mail, return receipt requested with postage prepaid, on the third business day following deposit. Notice must be addressed at the address or electronic mail address shown below for, or such other address as may be designated by notice by such Party:

If to Client:
TOWN OF NEDERLAND, COLORADO
Attn: _____
_____
_____
E-mail: _____

If to Farnsworth Group:
Farnsworth Group, Inc.
Attn: Fredrick L. Easton, Jr.
5613 DTC Parkway, Suite 1100
Greenwood Village, CO 80111
E-mail: feaston@f-w.com

With a copy (which will not constitute notice) to:
Farnsworth Group, Inc.
Attn: Michael Redington
2709 McGraw Drive
Bloomington, IL 61704

Facsimile; PDF Signatures. Execution and delivery of this Agreement by delivery of a facsimile or portable document format ("PDF") copy bearing the facsimile or PDF signature of any party hereto shall constitute a valid and binding execution and delivery of this Agreement by such party. Such facsimile and PDF copies shall constitute enforceable original documents.

Force Majeure: Obligations of either party under the Agreement, other than payment obligations, shall be suspended, and such party shall not be liable for damages or other remedies while such party is prevented from complying herewith, in whole or in part, due to contingencies beyond its reasonable control, including, but not limited to strikes, riots, war, fire, acts of God, injunction, compliance with any law, regulation, or order, whether valid or invalid, of the United States of America or any other governmental body or any instrumentality thereof, whether now existing or hereafter created, inability to secure materials or obtain necessary permits, provided, however, the party so prevented from complying with its obligations hereunder shall promptly notify the other party thereof.

Assignment: Client shall not transfer or assign any rights under or interest in the Agreement, without the written consent of Farnsworth Group.

Dispute Resolution: In an effort to resolve any conflicts that arise during the performance of professional services for the Project or following completion of the Project, Client and Farnsworth Group agree that all disputes shall first be negotiated between senior officers of Client and Farnsworth Group for up to thirty (30) days before being submitted to mediation. In the event negotiation and mediation are not successful, either Client or Farnsworth Group may seek a resolution in any state or federal court that has the required jurisdiction within 180 days of the conclusion of mediation.

Timeliness of Performance: Farnsworth Group will begin work under the Agreement upon receipt of a fully executed copy of the Agreement. Client and Farnsworth Group are aware that many factors outside Farnsworth Group's control may affect its ability to complete the services to be provided under the Agreement. Farnsworth Group will perform these services with reasonable diligence and expediency consistent with sound professional practices.

Suspension: Client or Farnsworth Group may suspend all or a portion of the work under the Agreement by notifying the other party in writing if unforeseen circumstances beyond control of Client or Farnsworth Group make normal progress of the work impossible. Farnsworth Group may suspend work in the event Client does not pay invoices when due, and Farnsworth Group shall have no liability whatsoever to Client, and Client agrees to make no claim for any delay or damage as a result of such suspension. The time for completion of the work shall be extended by the number of days work is suspended. If the period of suspension exceeds ninety (90) days, Farnsworth Group shall be entitled to an equitable adjustment in compensation for start-up, accounting and management expenses.

Termination: If either party defaults in performing any of the terms or provisions of the Agreement, and continues in default for a period of fifteen (15) days after written notice thereof, the party not in default shall have the right to immediately terminate the Agreement. The non-defaulting party shall be entitled to all remedies under Colorado law at the time of breach, including, without limitation, the right to recover as an element of its damages, reasonable attorney's fees and court costs.

Reuse of Documents: All documents including reports, drawings, specifications, and electronic media prepared by Farnsworth Group and/or any subconsultant pursuant to the Agreement are instruments of its services for use solely with respect to this Project. Farnsworth Group and/or any subconsultant shall be deemed the authors and owners of their respective instruments of service and shall retain all common law, statutory and other reserved rights, including copyrights. They are not intended or represented to be suitable for reuse by Client or others on extensions of the Project or on any other project. Any reuse without specific written verification or adaptation by Farnsworth Group will be at Client's sole risk, and without liability to Farnsworth Group, and Client shall indemnify and hold harmless Farnsworth Group or any subconsultant from all claims, damages, losses and expenses including court costs and attorney's fees arising out of or resulting therefrom. Any such verification or adaptation will entitle Farnsworth Group to further compensation at rates to be agreed upon by Client and Farnsworth Group.

Subcontracting: Farnsworth Group shall have the right to subcontract any part of the services and duties hereunder without the consent of Client.

Third Party Beneficiaries: Nothing contained in the Agreement shall create a contractual relationship with or a cause of action in favor of a third party against either Client or Farnsworth Group, except as expressly provided herein. Farnsworth Group's services under the Agreement are being performed solely for Client's benefit, and no other party or entity shall have any claim against Farnsworth Group because of the Agreement; or the performance or nonperformance of services hereunder; or reliance upon any report or document prepared hereunder. Neither Farnsworth Group nor Client shall have any obligation to indemnify each other from third party claims, except as expressly provided herein. Client and Farnsworth Group agree to require a similar provision in all contracts with construction contractors and subconsultants, vendors, and other entities involved in the Project to carry out the intent of this provision.

Right of Entry: Client shall provide for Farnsworth Group's and/or any subconsultant's right to enter property owned by Client and/or others in order for Farnsworth Group and/or any subconsultant to fulfill the scope of services for this Project. Client understands that use of exploration equipment may unavoidably cause some damage, the correction of which is not part of the Agreement unless explicitly so provided.

Recognition of Risk: Client acknowledges and accepts the risk that: (1) data on site conditions such as geological, geotechnical, ground water and other substances and materials, can vary from those encountered at the times and locations where such data were obtained, and that this limitation on the available data can cause uncertainty with respect to the interpretation of conditions at Client's site; and (2) although necessary to perform the Agreement, commonly used exploration methods (e.g., drilling, borings or trench excavating) involve an inherent risk of contamination of previously uncontaminated soils and waters. Farnsworth Group's and/or any subconsultant's application of its present judgment will be subject to factors outlined in (1) and (2) above. Client waives any claim against Farnsworth Group and/or any subconsultant, and agrees to indemnify and hold Farnsworth Group and/or any subconsultant harmless from any claim or liability for injury or loss which may arise as a result of alleged contamination caused by any site exploration. Client further agrees to compensate Farnsworth Group and/or any subconsultant for any time spent or expenses incurred by Farnsworth Group and/or any subconsultant in defense of any such claim, in accordance with Farnsworth Group's and/or any subconsultant's prevailing fee schedule and expense reimbursement policy.

Authority and Responsibility: Client agrees that Farnsworth Group and any subconsultant shall not guarantee the work of any construction contractor or construction subconsultant, shall have no authority to stop work, shall have no supervision or control as to the work or persons doing the work, shall not have charge of the work, shall not be responsible for safety in, on, or about the job site, or have any control of the safety or adequacy of any equipment, building component, scaffolding, supports, forms, or other work aids.

Electronic Files Transfer.
(a) Farnsworth Group may prepare electronic files which contain machine-readable information or certain information for a project ("Project Files"). Client may request Project Files to facilitate Client's understanding of the project. The Parties recognize that the Project Files are subject to alteration, either intentionally or unintentionally, due to, among other causes, transmission, conversion, media degradation, software error or human error. The Parties further understand that the transfer of Project Files from the system and format used by Farnsworth Group to an alternate system or format cannot be accomplished without the introduction of anomalies and/or errors.

(b) Upon request, Farnsworth Group will supply Project Files to Client upon the express terms and conditions set forth herein:
(i) The Project Files may not be used for any purpose not related specifically to the Client's project. Use of these files for development of other

projects; additions to the project, or duplication of the project at any location is expressly prohibited.

(ii) The Project Files are provided for information purposes only and are not intended as an end product. The Project Files may be a work in process, and Farnsworth Group is under no obligation to provide Client with any updated version(s) of the Project Files.

(iii) Client acknowledges and understands that the Project Files may not reflect all data contained in the contract documents, addenda, or other pertinent contract-related documents. Client acknowledges and understands that the Project Files may contain data which is not included in the contract documents.

(c) BIM Digital Files. With regard to the transfer of Building Information Model (BIM) digital files, both Parties agree as follows:

(i) Farnsworth Group will provide only those BIM files created for Client's project. There is no representation the BIM files are comprehensive or comprise a complete model of the building.

(ii) The level of development of the model will be defined consistent with AIA Document G202-2013, as agreed by the parties. After reviewing and verifying the accuracy of the information contained within Farnsworth Group's BIM files, Client is authorized to develop its own model to a higher level of development for its own uses, but, in doing so, expressly agrees to assume all risks associated therewith.

Utilities: Client shall be responsible for designating the location of all utility lines and subterranean structures within the property line of the Project. Client agrees to waive any claim against Farnsworth Group and/or any subconsultant, and to indemnify and hold harmless from any claim or liability for injury or loss arising from Farnsworth Group and/or any subconsultant or other persons encountering utilities or other man-made objects that were not called to Farnsworth Group's attention or which were not properly located on documents furnished to Farnsworth Group. Client further agrees to compensate Farnsworth Group and/or any subconsultant for any time spent or expenses incurred by Farnsworth Group and/or any subconsultant in defense of any such claim, in accordance with Farnsworth Group's and/or any subconsultant's prevailing fee schedule and expense reimbursement policy.

Samples: All samples of any type (soil, rock, water, manufactured materials, biological, etc.) will be discarded sixty (60) days after submittal of Project deliverables. Upon Client's authorization, samples will be either delivered in accordance with Client's instructions or stored for an agreed charge.

Discovery of Unanticipated Hazardous Substances or Pollutants: Hazardous substances are those so defined by prevailing Federal, State, or Local laws. Pollutants mean any solid, liquid, gaseous, or thermal irritant or contaminant including smoke, vapor, soot, fumes, acids, alkalies, chemicals and waste. Hazardous substances or pollutants may exist at a site where they would not reasonably be expected to be present. Client and Farnsworth Group and/or any subconsultant agree that the discovery of unanticipated hazardous substances or pollutants constitutes a "changed condition" mandating a renegotiation of the scope of services or termination of services. Client and Farnsworth Group and/or any subconsultant also agree that the discovery of unanticipated hazardous substances or pollutants will make it necessary for Farnsworth Group and/or any subconsultant to take immediate measures to protect human health and safety, and/or the environment. Farnsworth Group and/or any subconsultant agree to notify Client as soon as possible if unanticipated known or suspected hazardous substances or pollutants are encountered. Client encourages Farnsworth Group and/or any subconsultant to take any and all measures that in Farnsworth Group's and/or any subconsultant's professional opinion are justified to preserve and protect the health and safety of Farnsworth Group's and/or any subconsultant's personnel and the public, and/or the environment, and Client agrees to compensate Farnsworth Group and/or any subconsultant for the additional cost of such measures. In addition, Client waives any claim against Farnsworth Group and/or any subconsultant, and agrees to indemnify and hold Farnsworth Group and/or any subconsultant harmless from any claim or liability for injury or loss arising from the presence of unanticipated known or suspected hazardous substances or pollutants. Client also agrees to compensate Farnsworth Group and/or any subconsultant for any time spent and expenses incurred by Farnsworth Group and/or any subconsultant in defense of any such claim, with such compensation to be based upon Farnsworth Group's and/or any subconsultant's prevailing fee schedule and expense reimbursement policy. Further, Client recognizes that Farnsworth Group and/or any subconsultant has neither responsibility nor liability for the removal, handling, transportation, or disposal of asbestos containing materials, nor will Farnsworth Group and/or any subconsultant act as one who owns or operates an asbestos demolition or renovation activity, as defined in regulations under the Clean Air Act.

Job Site: Client agrees that services performed by Farnsworth Group and/or any subconsultant during construction will be limited to providing observation of the progress of the work and to address questions by Client's representative concerning conformance with the Contract Documents. This activity is not to be interpreted as an inspection service, a construction supervision service, or guaranteeing the construction contractor's or construction subconsultant's performance. Farnsworth Group and/or any subconsultant will not be responsible for construction means, methods, techniques, sequences, or procedures, or for safety precautions and programs. Farnsworth Group and/or any subconsultant will not be responsible for construction contractor's or construction subconsultant's obligation to carry out the work according to the Contract Documents. Farnsworth Group and/or any subconsultant will not be considered an agent of Client and will not have authority to direct construction contractor's or construction subconsultant's work or to stop work.

Shop Drawing Review: Client agrees that Farnsworth Group and/or any subconsultant shall review shop drawings and/or submittals solely for their general conformance with Farnsworth Group's and/or any subconsultant's design concept and general conformance with information given in the Contract Documents. Farnsworth Group and/or any subconsultant shall not be responsible for any aspects of a shop drawing and/or submittal that affect or are affected by the means, methods, techniques, sequences, and procedures of construction, safety precautions and programs incidental thereto, all of which are the construction contractor's or construction subconsultant's responsibility. The construction contractor or construction subconsultant will be responsible for dimensions, lengths, elevations and quantities, which are to be confirmed and correlated at the jobsite, and for coordination of the work with that of all other trades. Client represents that the construction contractor and construction subconsultant shall be made aware by Client of the responsibility to review shop drawings and/or submittals and approve them in these respects before submitting them to Farnsworth Group and/or any subconsultant.

LEED Certification and Energy Models: Client agrees that Farnsworth Group and/or any subconsultant do not guarantee the LEED certification of any facility for which Farnsworth Group and/or any subconsultant provides commissioning, LEED consulting or energy modeling services. The techniques and specific requirements for energy models used to meet LEED criteria have limitations that result in energy usage predictions that may differ from actual energy usage. Farnsworth Group and/or any subconsultant will endeavor to model energy usage very closely to actual usage, but Client agrees that Farnsworth Group and/or any subconsultant will not be responsible or liable in any way for inaccurate budgets for energy use developed from the predictions of LEED-compliant energy models. LEED certification and the number of LEED points awarded for energy efficiency are solely the responsibility of the U.S. Green Building Council and Green Building Certification Institute.

Environmental Site Assessments: No Environmental Site Assessment can wholly eliminate uncertainty regarding the potential for Recognized Environmental Conditions in connection with a Subject Property. Performance of an Environmental Site Assessment is intended to reduce, but not eliminate, uncertainty regarding potential for Recognized Environmental Conditions in connection with a Subject Property. In order to conduct the Environmental Site Assessment, information will be obtained and reviewed from outside sources, potentially including, but not limited to, interview questionnaires, database searches, and historical records. Farnsworth Group is not responsible for the quality, accuracy, and content of information from these sources. Any non-scope items provided in the Phase I Environmental Site Assessment Report are provided at the discretion of the environmental professional for the benefit of Client. Inclusion of any non-scope finding(s) does not imply a review of any other non-scope items with the Environmental Site Assessment investigation or report. The Environmental Site Assessment report is prepared for the sole and exclusive use of Client. Farnsworth Group does not intend, without its written consent, for the Phase 1 Environmental Site Assessment Report to be disseminated to anyone beside Client, or to be used or relied upon by anyone beside Client. Use of the report by any other person or entity is unauthorized and such use is at their sole risk.

Consequential Damages: Notwithstanding any other provision of the Agreement, and to the fullest extent permitted by law, neither Client nor Farnsworth Group, their respective officers, directors, partners, employees, contractors or subconsultants shall be liable to the other or shall make any claim for incidental, indirect, or consequential damages arising out of or connected in any way to the Project or Services performed under this Agreement. This mutual waiver of consequential damages shall include, but not be limited to, loss of use, loss of profit, loss of business, loss of income, loss of reputation and any other consequential damages

that either party may have incurred from any cause of action including negligence, strict liability, breach of contract and breach of strict and implied warranty. Both Client and Farnsworth Group shall require similar waivers of consequential damages protecting all the entities or persons named herein in all contracts and subcontracts with others involved in Project.

Personal Liability: It is intended by the parties to the Agreement that Farnsworth Group's services in connection with the Project shall not subject Farnsworth Group's individual employees, officers or directors to any personal legal exposure for the risks associated with this Project. Therefore, and notwithstanding anything to the contrary contained herein, Client agrees that as Client's sole and exclusive remedy, any claim, demand, or suit shall be directed and/or asserted only against "Farnsworth Group, Inc., an Illinois corporation," and not against any of Farnsworth Group's individual employees, officers or directors.

General Insurance and Limitation: Farnsworth Group is covered by commercial general liability insurance, automobile liability insurance and workers compensation insurance with limits which Farnsworth Group considers reasonable. Certificates of all insurance shall be provided to Client upon request in writing. Within the limits and conditions of such insurance, Farnsworth Group agrees to indemnify and hold Client harmless from any loss, damage or liability arising directly from any negligent act by Farnsworth Group. Farnsworth Group shall not be responsible for any loss, damage or liability beyond the amounts, limits and conditions of such insurance. Farnsworth Group shall not be responsible for any loss, damage or liability arising from any act by Client, its agents, staff, other consultants, independent contractors, third parties or others working on the Project over which Farnsworth Group has no supervision or control. Notwithstanding the foregoing agreement to indemnify and hold harmless, the parties agree that Farnsworth Group has no duty to defend Client from and against any claims, causes of action or proceedings of any kind.

Professional Liability Insurance and Limitation: Farnsworth Group is covered by professional liability insurance for its professional acts, errors and omissions, with limits which Farnsworth Group considers reasonable. Certificates of insurance shall be provided to Client upon request in writing. Within the limits and conditions of such insurance, Farnsworth Group agrees to indemnify and hold Client harmless from loss, damage or liability arising from errors or omissions by Farnsworth Group that exceed the industry standard of care for the services provided. Farnsworth Group shall not be responsible for any loss, damage or liability beyond the amounts, limits and conditions of such insurance. Farnsworth Group shall not be responsible for any loss, damage or liability arising from any act, error or omission by Client, its agents, staff, other consultants, independent contractors, third parties or others working on the Project over which Farnsworth Group has no supervision or control. Notwithstanding the foregoing agreement to indemnify and hold harmless, the parties agree that Farnsworth Group has no duty to defend Client from and against any claims, causes of action or proceedings of any kind.

AGGREGATE LIMITATION OF LIABILITY: IN RECOGNITION OF THE RELATIVE RISKS AND BENEFITS OF THE PROJECT TO BOTH CLIENT AND FARNSWORTH GROUP, THE RISKS HAVE BEEN ALLOCATED SUCH THAT CLIENT AGREES THAT FOR THE COMPENSATION HEREIN PROVIDED, FARNSWORTH GROUP CANNOT EXPOSE ITSELF TO DAMAGES DISPROPORTIONATE TO THE NATURE AND SCOPE OF FARNSWORTH GROUP'S SERVICES OR THE COMPENSATION PAYABLE TO IT HEREUNDER. THEREFORE, TO THE MAXIMUM EXTENT PERMITTED BY LAW AND NOTWITHSTANDING ANY OTHER PROVISION OF THIS AGREEMENT, CLIENT AGREES THAT THE TOTAL LIABILITY OF FARNSWORTH GROUP TO CLIENT AND ANYONE CLAIMING BY, THROUGH, OR UNDER CLIENT, FOR ANY AND ALL CAUSES OF ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE PERFORMANCE OF SERVICES BY FARNSWORTH GROUP SHALL BE LIMITED IN THE ACCUMULATIVE AGGREGATE TO TWO HUNDRED FIFTY THOUSAND DOLLARS ($250,000) OR THE TOTAL FEES PAID TO FARNSWORTH GROUP BY CLIENT UNDER THIS AGREEMENT, WHICHEVER IS GREATER ("LIMITATION"). CLIENT HEREBY WAIVES AND RELEASES (I) ALL PRESENT AND FUTURE CLAIMS AGAINST FARNSWORTH GROUP, OTHER THAN THOSE DESCRIBED IN THE PREVIOUS SENTENCE, AND (II) ANY LIABILITY OF FARNSWORTH GROUP IN EXCESS OF THE LIMITATION. IN CONSIDERATION OF THE PROMISES CONTAINED HEREIN AND FOR OTHER SEPARATE, VALUABLE CONSIDERATION, THE RECEIPT AND SUFFICIENCY OF WHICH ARE HEREBY ACKNOWLEDGED, CLIENT ACKNOWLEDGES AND AGREES THAT (I) BUT FOR THE LIMITATION, FARNSWORTH GROUP WOULD NOT HAVE PERFORMED THE SERVICES, (II) CLIENT HAS HAD THE OPPORTUNITY TO NEGOTIATE THE TERMS OF THE LIMITATION AS PART OF AN "ARMS-LENGTH" TRANSACTION, (III) THE LIMITATION AMOUNT MAY BE LESS THAN THE AMOUNT OF INSURANCE REQUIRED OF FARNSWORTH GROUP UNDER THE AGREEMENT, (IV) THE LIMITATION IS MERELY A LIMITATION OF, AND NOT AN EXCULPATION FROM, FARNSWORTH GROUP'S LIABILITY AND DOES NOT IN ANY WAY OBLIGATE CLIENT TO DEFEND, INDEMNIFY OR HOLD HARMLESS FARNSWORTH GROUP, (V) THE LIMITATION IS AN AGREED REMEDY, AND (VI) THE LIMITATION AMOUNT IS NEITHER NOMINAL NOR A DISINCENTIVE TO FARNSWORTH GROUP PERFORMING THE SERVICES IN ACCORDANCE WITH THE STANDARD OF CARE.

Subpoenas: Client is responsible, after notification, for payment of time charges and expenses resulting from the required response by Farnsworth Group and/or any subconsultant to subpoenas issued by any party other than Farnsworth Group and/or any subconsultant in conjunction with the services performed under the Agreement. Charges are based on fee schedules in effect at the time the subpoena is served.

Statutes of Repose and Limitation: All legal causes of action between the parties to the Agreement shall accrue and any applicable statutes of repose or limitation shall begin to run not later than the date of Substantial Completion. If the act or failure to act complained of occurs after the date of Substantial Completion, then the date of final completion shall be used, but in no event shall any statute of repose of limitation begin to run any later than the date Farnsworth Group's services are completed or terminated.

Severability: If any term or provision of the Agreement is held to be invalid or unenforceable under any applicable statute or rule of law, such holding shall be applied only to the provision so held, and the remainder of the Agreement shall remain in full force and effect.

Waiver: No waiver by either party of any breach, default, or violation of any term, warranty, representation, agreement, covenant, condition, or provision hereof shall constitute a waiver of any subsequent breach, default, or violation of the same or any other term, warranty, representation, agreement, covenant, condition, or provision hereof. All waivers must be in writing.

Survival: Notwithstanding completion or termination of the Agreement for any reason, all rights, duties, obligations of the parties to the Agreement shall survive such completion or termination and remain in full force and effect until fulfilled.

Governing Law: The Agreement shall be governed by and interpreted pursuant to the laws of the State of Colorado without regard to conflict of law principles.

[REMAINDER OF THIS IN INTENTIONALLY BLANK]